

Naresh Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 December 2020 · Writ - C No. 20208 of 2020 · WRIT - C No. - 20208 of 2020 · **Writ disposed; remitted to Clause 6.14 representation.**

HEADNOTE

A consumer who sought quashing of an electricity recovery notice and a court-fixed instalment schedule was remitted, without examination of merits, to a representation before the distribution licensee under Clause 6.14 of the Electricity Supply Code, 2005, to be decided in accordance with law within a fixed time.

FACTUAL SUMMARY

Naresh Kumar petitioned the Allahabad High Court to quash a 26 October 2020 electricity recovery notice, to compel the Power Corporation to accept the outstanding dues in Court-fixed easy instalments, and to restrain coercive recovery. He offered to deposit the amount in instalments. Counsel for the Power Corporation submitted that Clause 6.14 of the Electricity Supply Code, 2005 provided for the request and that the petitioner should approach the Corporation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where a consumer facing recovery of electricity dues seeks an instalment facility and the licensee points to Clause 6.14 of the Electricity Supply Code, 2005, the High Court may dispose of the writ without examining merits and remit the consumer to a representation before the licensee, to be considered and decided in accordance with law within a stipulated time. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

Without entering the merits, the Court remitted the consumer's request to pay recovered electricity dues in instalments to the Power Corporation under Clause 6.14, to be considered in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 26.10.2020

Certiorari to quash the notice was not decided on merits. ¶ 1

NOT DECIDED — ENTITLEMENT TO INSTALMENTS OR THE INSTALMENT SCHEDULE

Left to the licensee's consideration under Clause 6.14. ¶ 1

NOT DECIDED — RESTRAINT ON COERCIVE RECOVERY OF ELECTRICITY DUES

Mandamus against coercive methods was neither granted nor refused. ¶ 1